

Entitlement Pipeline: Data Cleaning

Tyler Jacobson

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1 To Do List

1.1 Descriptives

Appeals

1. What fraction of projects are appealed?
2. How long does the appeal take?
3. What fraction of appeals are granted?
4. How does the location and size of the project affected whether the project gets appealed?
5. Do appealed projects get built at the same rate as others?

Lawsuits

1. What fraction of projects are litigated?
2. How long does the lawsuit take?
3. What fraction of lawsuits are granted?
4. How does the location and size of the project affected whether the project gets sued?
5. Do litigated projects get built at the same rate as others?

Combined:

1. What is the cumulative amount of time an opponent could add to the project?
2. How does the likelihood of completion depend on the amount of time in the planning process

1.2 Framework

Key question: how costly is a delay? argument is that it depends greatly on project risk and the upfront level of investment firms must put into the process. With no upfront cost, then there is no real cost of delays, everything is proposed. How risky are projects? Can we say anything about that? Our best hope is to use a congestion instrument.

1.3 Congestion

Approval timelines in the United States are long and variable. Opponents to new housing have tools at their disposal to extend timelines and make approval more difficult for developers. For example, in Los Angeles, anyone may appeal a city planning decision or choose to litigate the decision by arguing the review process did not properly follow environmental review. We find that these delay tactics are common with X% housing units proposed between 2015 and 2025 facing one of these two tools. Comparing similar projects that were or were not sued/appealed, we find that these delays considerably reduce the probability that projects complete and break ground even if they are eventually approved. The dropout due to delay suggests using a high discount factor when predicting the effect of

2 Example

DIR-2023-2838-TOC-SPP-SPR-HCA Location 4627 W Hollywood Filed on 4/24/2023 Approved 9/17/2024 Appealed on 9/23/2024: Planning application LA CPC denied the appeal on 1/23/2025 (Important to know that this not what is in the data) CEQA Appeal on 2/7/2025 City council rejects appeal on 6/5/2025 <https://la.urbanize.city/post/la-city-council-upholds-approval-mixed-use-project-4627-hollywood-blvd> Appeals added roughly 9 months to the approval process and added an additional two vetos.

Here is the appeal being [rejected](#)

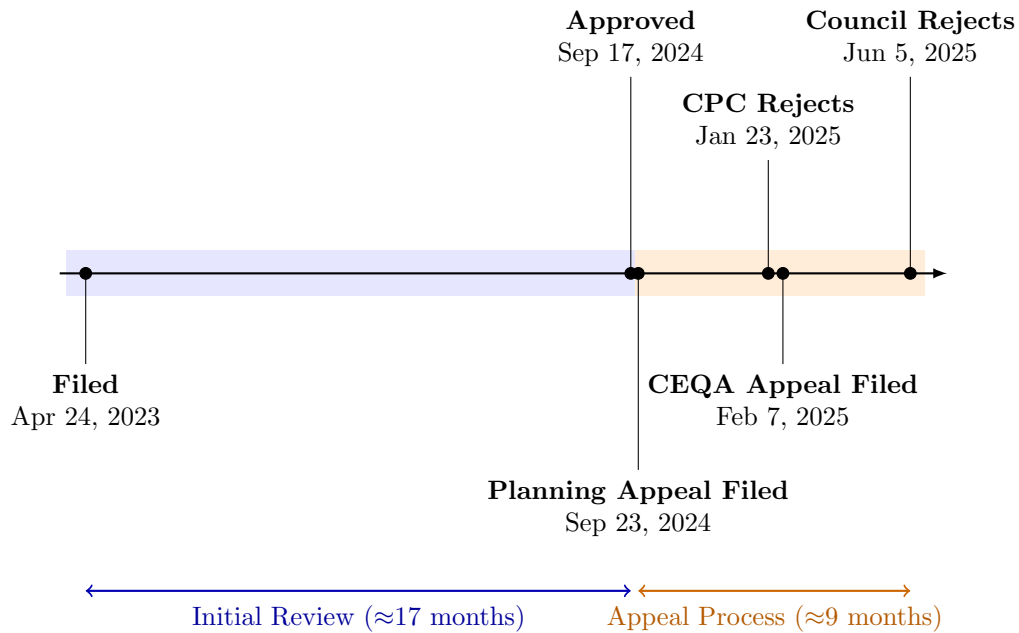


Figure 1: Case timeline for DIR-2023-2838 (4627 W Hollywood Blvd). The planning appeal was filed six days after approval; appeals added roughly nine months to the overall process.

So according to my entitlements data, this was filed on 4/24/2023 completed on 9/17/2024 Max app date: 17sep2024 Min filing date 24apr2023

So we are not getting the data right here. Data on appeals comes from both the city planning commission and from the city council. The CPC has minutes pdfs of varying quality

3 Comparing Appealed and Non-Appealed Projects

Here I am restricting to projects that have unit counts.

	(1)		(2)	
	Not Appealed		Appealed	
	Mean	(SD)	Mean	(SD)
Permit Obtained	0.55	(0.50)	0.49	(0.50)
Tract Renter Share (2014)	0.63	(0.26)	0.64	(0.25)
Min. Dwelling Unit Size (sq ft)	5,722.55	(11,099.53)	5,562.09	(10,725.83)
Lot Size (sq ft)	16,306.00	(45,234.40)	22,429.43	(49,662.66)
Land Value (2010)	433,865.62	(1,262,832.26)	1,045,169.73	(3,620,513.41)
Existing Units (2010)	2.05	(7.42)	2.95	(17.53)
Share Affordable Units Proposed	0.17	(0.34)	0.08	(0.20)
Total Units Proposed	37.86	(90.47)	93.03	(189.30)
Categorical Exemption	0.79	(0.41)	0.59	(0.49)
Mitigated Neg. Declaration	0.17	(0.38)	0.28	(0.45)
Environmental Impact Report	0.01	(0.11)	0.09	(0.29)
Any Environmental Review	0.98	(0.14)	0.97	(0.18)
Total Entitlements Requested	2.00	(1.05)	2.21	(1.42)
Pre Appeal Case Length (Days)	357.67	(328.21)	580.87	(517.09)
Tract Median Gross Rent (2014)	1,373.63	(392.69)	1,420.11	(394.30)
Tract Median HH Income (2014)	66,028.38	(38,517.80)	67,450.02	(36,480.25)

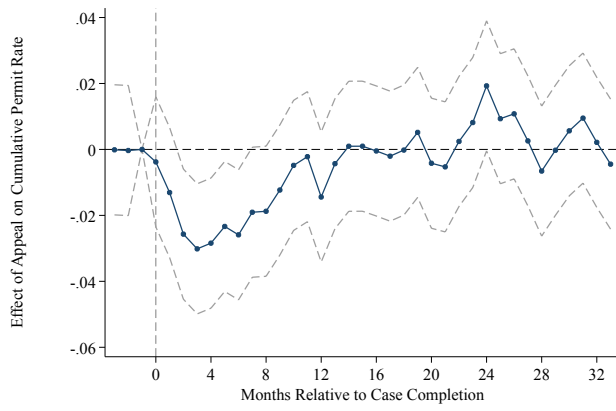
Table 1: Summary Stats

4 How Do Appeals Change When Projects Get Built?

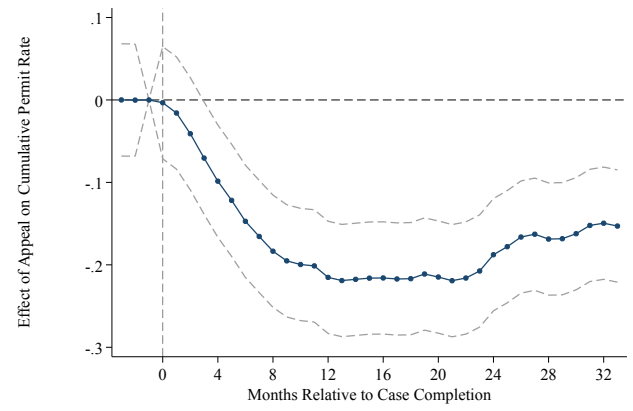
To see how appeals change when and whether projects get built, I run the following descriptive event study specification:

$$Y_{it} = \sum_{k \neq -1} (\tau_k B_{i,k} + \tau_k^A 1\{A_i = 1\} * B_{i,k}) + \beta X_i + \phi_t + \epsilon_{i,t}$$

where Y_{it} is whether project i is built (instantaneously or cumulatively) in month t . $B_{i,k}$ is an indicator for the month relative to when the application was initially approved. A_i is an indicator for whether application i was appealed (at time a). X_i are a set of controls (log units, log case length, and whether the project was appealed at all). ϕ_t are monthly fixed effects. By construction, there are no projects receiving building permits prior to getting approval. τ_k^A are the coefficients of interest, which can be read as the differential (cumulative or instantaneous) permitting rate of appealed projects, k months after approval.



(a) Monthly Build Rates



(b) Cumulative Build Rates

Figure 2: Effect of Appeals on Building Completion

4.1 Which Projects are Likely to be Appealed?